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Case Number: 25STCV29844 Hearing Date: July 27, 2026 Dept: 400

DEMURRER WITHOUT MOTION TO STRIKE

The Court tenders the following

tentative decision in the matter Mamak Eatesam v. Dignity Health, et al.,

Los Angeles County Superior Court case number 25STCV29844, set for hearing on March

17, 2026. SoCal Hospitalists (SoCal) demurs

to the second, third, and fifth through ninth causes of action asserted against

it in Mamak Eatesam's (Plaintiff) first amended complaint (FAC). Separately,

Babak Gachpaz demurs to Plaintiff's tenth cause of action. Plaintiff opposes both

demurrers. SoCal's demurrer is sustained and Gachpaz's is overruled. Plaintiff

is granted leave to amend.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a

cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the

legal sufficiency of the factual allegations in a complaint." (Yalung v.

State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal

sufficiency, a court will treat the demurrer as admitting all material facts

properly pleaded, but not contentions, deductions or conclusions of law. (Esparza

v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well

settled that a "demurrer lies only for defects appearing on the face of the

complaint[.]" (Stevens v. Superior Court

(1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting

all material facts properly pleaded, but also give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context." (Guclimane Co. v. Stewart Tit. Guaranty Co.

(1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint

must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Wilner v. Sunset Life Ins. Co.* (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (*Ion Equipment Corporation v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (*Kramer v. Intuit Inc.* (2004) 121 Cal.App.4th 574, 578.)

When a

demurrer is sustained or motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318). When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

SoCal and Gachpaz demur to the following causes of action alleged against it in Plaintiff's complaint on the grounds that Plaintiff has not pled sufficient facts to constitute any cause of action: (1) second cause of action for harassment on the basis of gender in violation of the Fair Employment and Housing Act (FEHA); (2) third cause of action for discrimination on the basis of gender in violation of the FEHA; (3) fifth cause of action for aiding and abetting harassment, discrimination, and retaliation in violation of the FEHA; (4) sixth cause of action for retaliation in violation of the FEHA; (5) seventh cause of action for whistleblower retaliation in violation of Labor Code section 1102.5; (6) eighth cause of action for wrongful termination in violation of the FEHA; and (7) ninth cause of action for wrongful termination in violation of public policy. (Code Civ. Proc., § 430.10, subd. (e).) Meanwhile, Gachpaz demurs to Plaintiff's tenth

cause of action for intentional infliction of emotional distress on the grounds that Plaintiff has not pled sufficient facts. (Ibid.)

Plaintiff has not alleged an employer relationship with SoCal.

Specifically, SoCal argues that each cause of action alleged against it requires allegations that it was Plaintiff's employer, allegations that Plaintiff has failed to assert. Indeed, Plaintiff's second, third, fifth, sixth, and eighth causes of action, brought pursuant to the FEHA, require a showing that SoCal was Plaintiff's employer. (See *Vernon v. State of California* (2004) 116 Cal.App.4th 114, 123 (Vernon); Gov. Code, § 12940.) Likewise, Labor Code section 1102.5 prohibits an employer from retaliating against an employee. (Lab. Code, § 1102.5, subd. (b).) And Plaintiff's claim for wrongful termination must arise out of an employer-employee relationship as well. (*Koehrer v. Superior Court* (1986) 181 Cal.App.3d 1155, 1166.) Thus, the Court must determine whether Plaintiff's FAC sufficiently alleges that SoCal was her employer to determine whether demurrer is appropriate to all causes of action asserted against it.

In determining whether a sufficient employer-employee relationship exists for liability under the FEHA, Courts "consider the 'totality of circumstances' that reflect upon the nature of the work relationship of the parties, with emphasis upon the extent to which the defendant controls the plaintiff's performance of employment duties." (*Vernon*, supra, 116 Cal.App.4th at p. 124.) "Factors to be taken into account in assessing the relationship of the parties include payment of salary or other employment benefits and Social Security taxes, the ownership of the equipment necessary to performance of the job, the location where the work is performed, the obligation of the defendant to train the employee, the authority of the defendant to hire, transfer, promote, discipline or discharge the employee, the authority to establish work schedules and assignments, the defendant's discretion to determine the amount of compensation earned by the employee, the skill required of the work performed and the extent to which it is done under the direction of a supervisor, whether the work is part of the defendant's regular business operations, the skill required in the particular occupation, the duration of the relationship of the parties, and the duration of the plaintiff's employment." (*Id.* at p. 125.)

Here, Plaintiff alleges that the

conduct underlying her complaint occurred at SoCal's place of business. (FAC ¶ 2.) Plaintiff alleges that all named defendants, including Defendant, directly and indirectly employed her, compelled, coerced, aided, and abetted the alleged harassment, and acted as agents of one another. (Id. ¶¶ 5–7.) She alleges that she was hired in 2019 by Defendant ProHealth Partners (ProHealth). (Id. ¶ 12(a).) Plaintiff further alleges that though she was hired by ProHealth, Dignity Health (Dignity) and its CEO Carolyn Caldwell maintained direct operational control over her employment. (Id. ¶ 12(b).) Plaintiff does not make similar allegations regarding SoCal. Rather, she alleges that on April 14, 2025, she received notice that Defendant would be taking over ProHealth's duties and that this change effectively terminated her employment. (Id. ¶ 12(s).) She did not submit her CV to Defendant to be considered for a position. (Id. ¶ 12(u).)

Plaintiff has not alleged that SoCal was her employer under the standard set forth in Vernon. Plaintiff does not allege that SoCal ever paid her salary, conducted any training, established her work schedule or assignments, or even hired her. Plaintiff specifically alleges that SoCal's engagement with the hospital at which she worked ended her employment. (Id. ¶ 12(s).) She specifically alleges that her employment with ProHealth was terminated when the new contract with SoCal officially took effect on July 20, 2025. (Id. ¶ 12(x).) Based on these allegations, there was no point in time at which SoCal employed Plaintiff. Thus, Plaintiff cannot state causes of action under the FEHA against SoCal. Similarly, Plaintiff's other causes of action for whistleblower retaliation under the Labor Code and for wrongful termination fail because of the lack of any employment relationship between Plaintiff and SoCal.

Plaintiff argues that she was still entitled to FEHA protections as an applicant. (See Gov. Code, § 12940.) However, Plaintiff specifically alleges that she refused to apply to a job with SoCal. (FAC ¶ 12(u).) Thus, Plaintiff cannot claim liability under the FEHA as either an employee or applicant to SoCal. Accordingly, SoCal's demurrer is sustained as to Plaintiff's second, third, and fifth through ninth causes of action.

Gachpaz's demurrer to Plaintiff's tenth cause of action for intentional infliction of emotional distress is overruled.

Gachpaz argues that Plaintiff has not pled sufficient facts to constitute her tenth cause of action for intentional

infliction of emotional distress. (Code Civ. Proc., § 430.10, subd. (e).) To prevail on such a claim, a plaintiff must demonstrate: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) Here, Plaintiff alleges that Gachpaz engaged in extreme and outrageous conduct. (FAC ¶ 116.) Specifically, Plaintiff alleges that he invited her to a supposedly professional dinner but proceeded to make unwanted sexual advances, that he and his wife forced her to stay at their house, that he subjected her to months of harassment afterwards, and that after she told him to stop contacting her he sought to intimidate her in her office. (Id. ¶¶ 12(c)–(f).) This conduct could be considered outrageous given its intentionality and persistence. Plaintiff additionally alleges that he intended to cause emotional distress and that she suffered severe emotional distress and damages. (Id. ¶¶ 117–118.) Accordingly, Gachpaz's demurrer is overruled as to Plaintiff's tenth cause of action.

C. Conclusion

The Court sustains

SoCal's demurrer. Gachpaz's demurrer is overruled. Plaintiff is granted 30 days leave to amend.

DEMURRER WITHOUT MOTION TO STRIKE

The Court tenders the following

tentative decision in the matter Mamak Eatesam v. Dignity Health, et al., Los Angeles County Superior Court case number 25STCV29844, set for hearing on July 27, 2026. Carolyn Caldwell (Defendant) demurs to Mamak Eatesam's (Plaintiff) tenth cause of action for intentional infliction of emotional distress contained within her first amended complaint (FAC). Plaintiff opposes demurrer. Defendant's demurrer is sustained. Plaintiff is granted leave to amend.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the

legal sufficiency of the factual allegations in a complaint.” (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint’s legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a “demurrer lies only for defects appearing on the face of the complaint[.]” (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) “We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Guclimane Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint’s allegations or matters which may be judicially noticed. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

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demurrer is sustained or motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318). When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendant once again demurs to Plaintiff’s tenth cause of action for intentional infliction of emotional distress on the grounds that she has not pled sufficient facts after the Court

previously sustained a demurrer on this basis. (Code Civ. Proc., § 430.10, subd. (e).) To prevail on such a claim, a plaintiff must prove: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.)

Here, Plaintiff alleges that Defendant engaged in extreme and outrageous conduct. (FAC ¶ 116.) Specifically, Plaintiff alleges that Defendant instructed her to not discuss the harassment by Gachpaz with her colleagues after being told that Plaintiff did not feel safe. (Id. ¶¶ 12(j), (k).) She also allegedly decided to have Plaintiff work alongside Gachpaz despite being told of the psychological impact it would have on her. (Id. ¶¶ 12(n), (o).) Additionally, Defendant took no action to stop harassment by Gachpaz’s wife. (Id. ¶ 12(p).) Finally, Plaintiff alleges that Defendant awarded a hospital contract to SoCal, headed by Gachpaz. (Id. ¶¶ 12(s), (t).) But such conduct alleged by Plaintiff — siding with an alleged harasser and awarding a contract — does not rise to the level of outrageous. Such management decisions are entitled to deference. (Lewin v. St. Joseph Hospital of Orange (1978) 82 Cal. App. 3d 368, 384.) Indeed, “a simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.” (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80) The Court finds that Plaintiff has not pled sufficient facts to allege outrageous conduct. Accordingly, Defendant’s demurrer is sustained as to Plaintiff’s tenth cause of action.

C. Conclusion

The Court sustains Defendant’s demurrer. Plaintiff is granted 30 days leave to amend.